

BUCHANAN VS. DURLER, III

CASE NUMBER: 25CV-0208923

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on July 7, 2026 to Plaintiff Sara Buchanan, in pro per, for failure to timely serve. Proof of Service of Summons was filed on August 3, 2026. The Order to Show Cause is **DISCHARGED**. The matter will be on calendar on **Monday, October 12, 2026 at 9:00 a.m. in Department 63** for status responsive pleading or default. Plaintiff is reminded of the timeframes set forth in CRC 3.110.

CAVNAR VS. MODOC COUNTY

CASE NUMBER: 25CV-0209042

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on July 22, 2026 to Plaintiff Christopher Cavnar, in pro per, for failure to file a proper Proof of Service of Summons. The Complaint in this matter was filed on October 27, 2025. “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). Plaintiff filed a Proof of Service of Summons on December 5, 2025, however, the Proof of Service of Summons does not reflect valid service on any Defendant. Plaintiff did not file a written response to the Order to Show Cause. With no sufficient excuse for failure to timely serve, sanctions are imposed against Plaintiff in the amount of \$250. The clerk is directed to prepare the Order of Sanctions. **An appearance by Plaintiff is necessary on today’s calendar to explain the delay.**

CHANCE, ET AL. VS. STEALTH AUTO RECOVERY

CASE NUMBER: 25CV-0208848

Tentative Ruling on Motions to be Relieved as Counsel: Neama Rahmani from West Coast Trial Lawyers APLC moves to be relieved as counsel for Plaintiffs Douglas Chance and Saundra Martinez. A motion was filed for each Plaintiff.

CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel. In particular, CRC 3.1362 requires the use of specific mandatory Judicial Council forms for the Notice and Motion (MC-051) and Supporting Declaration (MC-052). Both forms and the proposed Order (MC-053) must be served on the client and all parties who have appeared in the case at either the current address or the last known address that has been confirmed within thirty days. CRC 3.1362(d). There are proofs of service on file reflecting timely service by mail on Plaintiffs as well as Defendants’ counsel who was served electronically. Counsel was unable to confirm the address used to serve Plaintiffs. However, it appears that counsel has taken reasonable steps to confirm the address.

As to the merits, a declaration must be filed that states in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under CCP § 284(2) is brought instead of filing a consent under CCP § 284(1). Plaintiff’s counsel has provided evidence that there is a breakdown in the attorney-client relationship that prevents continued representation.

The motions are **GRANTED**. The matter will be on calendar on **Monday, November 2, 2026 at 9:00 a.m. in Department 63** for status of counsel. Counsel provided proposed Orders that will be modified by the Court to include the future hearing date. Neama Rahmani from West Coast Trial Lawyers APLC will be relieved upon the filing of the Notices of Entry of Order. Plaintiffs’ counsel is ordered to provide notice to Defendants.

DIVIS VS. SHASTA AREA SAFETY COMMUNICATIONS AGENCY, ET AL.

CASE NUMBER: 26CV-0210924

Tentative Ruling on Demurrer: Defendants Shasta Area Safety Communications Agency aka Shascom-911 (“Shascom”) and Jessica Larmour demur to the Fifth Cause of Action alleged in the Complaint filed by Plaintiff James Divis. Plaintiff opposes the Demurrer.

Meet and Confer. Defendant has provided evidence of sufficient efforts to meet and confer prior to filing the Demurrer.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

The Fifth Cause of Action is for negligent supervision and is alleged only against Defendant Shascom. Defendant demurs to the Fifth Cause of Action on the basis that Plaintiff has failed to state a claim against Shascom. Shascom is a public entity.

Except as otherwise provided by statute:

(a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.

(b) The liability of a public entity established by this part (commencing with Section 814) is subject to any immunity of the public entity provided by statute, including this part, and is subject to any defenses that would be available to the public entity if it were a private person.

Gov. Code § 815

(a) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.

(b) Except as otherwise provided by statute, a public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability.

Gov. Code § 815.2

Negligent supervision is a common law tort claim. Plaintiff argues that *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal. 4th 861 holds that the negligent supervision claim alleged here is not barred by Gov. Code §§ 815 and 815.2. However, *C.A.* presents an exception, not the rule, as that case dealt with a student suing a school district for negligent supervision. In finding that liability could attach notwithstanding §§ 815 and 815.2, the supreme court found a special relationship that gave rise to duty. The court further held that “Absent such a special relationship, there can be no individual liability to third parties for negligent hiring, retention, or supervision of a fellow employee, and hence no vicarious liability under section 815.2.” *Id.* at p. 877.

There has been no case law presented here that would lead to a finding of a special relationship based on the factual allegations in this case. In each of the cases cited for special relationship, there was some sort of custody or caretaking type relationship. Plaintiff is an adult who is the former employee of Shascom.

Plaintiff further argues that Labor Code §§ 1050 and 1052 form the statutory basis for the negligent supervision claim since those sections impose direct liability against the employer.

Any person, or agent or officer thereof, who, after having discharged an employee from the service

of such person or after an employee has voluntarily left such service, by any misrepresentation prevents or attempts to prevent the former employee from obtaining employment, is guilty of a misdemeanor.

Lab. Code § 1050.

Any person who knowingly causes, suffers, or permits an agent, superintendent, manager, or employee in his employ to commit a violation of sections 1050 and 1051, or who fails to take all reasonable steps within his power to prevent such violation is guilty of a misdemeanor.

Lab. Code § 1052

The Court notes that the First and Second Causes of Action already allege violations of Labor Code §§ 1050 and 1052, respectively, against both Jessica Larmour and Shascom. Defendant argues the Fifth Cause of Action is not pled as relying on either Labor Code § 1050 or § 1052. This is correct. While paragraph 106 of the complaint realleges and incorporates preceding allegations, the allegations of the Fifth Cause of Action do not reference or in any way make it apparent that Labor Code §§ 1050 and 1052 form the statutory basis for the Fifth Cause of Action. The Court finds that, as currently pled, Plaintiff has failed to state a claim for negligent supervision as alleged in the Fifth Cause of Action. Therefore, the Court will sustain the demurrer. Plaintiff has requested leave to amend. While Defendant has requested that leave to amend be denied, the Court is inclined to allow Plaintiff the opportunity to correct the deficiency, if he can.

The Demurrer to the Fifth Cause of Action is **SUSTAINED** with leave to amend. Plaintiff is given 15 days from the date of the notice of entry of order to file a first amended complaint. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant is to prepare the Order.

IN RE: GEBRESILASSIE

CASE NUMBER: 26CV-0210823

Tentative Ruling on Petition for Change of Name: Petitioner seeks to change her name from Leila Belay Gebresilassie to Leila Yasmin Yohannes and to also change the name of her minor daughter. The Certificate of Publication was filed on July 24, 2026. The Court is able to **GRANT** the Petition on behalf of the mother. However, when a petition to change the name of a minor is brought by one parent only, the non-petitioning parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). A proof of service has not been filed indicating that the non-petitioning parent was personally served. As to the minor, the Court intends to **DENY** the Petition. Should Petitioner wish to have time to serve the non-petitioning parent, Petitioner request a future hearing date. Petitioner will be required to obtain an Amended Order to Show Cause with the new hearing date and serve that on the non-petitioning parent at least thirty days prior to the new hearing date. **An appearance by Petitioner is necessary on today's calendar to confirm whether Petitioner would like her Petition granted at this time and whether Petitioner seeks a continuance of the hearing to serve the non-petitioning parent.**

HOWLAND, ET AL. VS. SABET, ET AL.

CASE NUMBER: 25CV-0207803

Tentative Ruling on Motion to Strike: Plaintiffs David Howland and Lori Howland move to strike the Cross-Complaint filed by Defendants Farzad Sabet and Marikit Sabet on May 22, 2026. The Sabet Defendants oppose the motion.

As a preliminary matter, when reviewing this motion, the Court noticed that the clerk set aside the default at issue on February 23, 2026. This was a clerical error. While the parties discussed setting aside the default at the Mandatory Settlement Conference on February 23, 2026, no such order was made. The Court orders that the default was set aside effective April 6, 2026, which is the date the Court executed the Order to Set Aside Default. The clerk is directed to correct the date on the default set aside.